HECISA	DISCLAIMER: The present document is an authorized translation of the original in Spanish and is issued for information purpose only, its distribution is not controlled, therefore may be updated without precious notice.

WARRANTY:

1.- The Seller guarantees that the products comply with the mutually agreed specifications and that they will be delivered free of defects in materials and workmanship.

2.- The guarantee for products will expire after one (1) year from the date of shipment of the products, unless an extension of this guarantee has been contractually agreed. Once this period has elapsed, no claims or returns of any kind will be accepted for this reason.

3.- If the products do not satisfy the above guarantees, the Seller, at its option, will repair or replace the defective Products, provided that the Buyer notifies the Seller of such non-conformity in writing, before the end of the guarantee period, and within the period of five (5) days following the discovery of the anomaly or defect. The repair, replacement or new guarantee service by the Seller will not extend or renew the corresponding guarantee period.

4.- The Buyer will obtain the Seller's approval of the specifications of any test that it plans to carry out to determine whether there is a non-conformity. The Seller may in any case and previously check the defects caused by the means it considers appropriate, without the Buyer being able to hinder the actions of the persons designated by the Seller to verify such non-conformity.

5.- The Guarantee will not cover:

(a) any defects and/or malfunctions in the Products caused by the storage, installation, commissioning, use, or maintenance of the Products carried out by the Buyer or third parties

(b) any defects and/or malfunctions in the Products caused by shock or explosion in the support base of the Products or in the surrounding area, unless they have been fully specified in the design phase and included in the technical offer delivered to the Buyer.

(c) any defects and/or malfunctions in the Products caused by vibrations in the support base of the Products, unless they have been fully specified in the design phase and included in the technical offer delivered to the Buyer.

(d) Damage caused by the effect of wind when the values are higher than those specified in the design phase or when the base supporting the equipment is not suitable to withstand the forces and moments defined in the design specifications and/or design code.

(e) Damage caused by seismic effects when the values are higher than those specified in the design phase or when the base supporting the equipment is not suitable to withstand the forces and moments defined in the specifications and/or design code

(f) any defects and/or malfunctions in the Products caused by the incoming fluid not complying with the physical/chemical and/or biological parameters agreed and/or indicated by the Buyer and used for the design of the Product, and/or any defects and/or malfunctions in the Products caused by substances/elements/components of the incoming fluid not known to the Seller prior to the submission of the technical offer

(g) any defects and/or malfunctions in the Products caused by the use of consumables other than those authorized by the Seller in writing,

(h) any defects and/or malfunctions in the Products caused by inadequate operating conditions other than the intervals or parameters indicated by the Seller. By way of example but not limited to, working pressure conditions, quality of the fluid source, electrical supply voltage and/or conditions of exposure to aggressive environments (saline, acidic, basic and others).

(i) any repairs, modifications or alterations made to the Products by the Buyer, end customer, or by personnel other than the Seller, without the written consent of the Seller, and/or any repairs, alterations or modifications made to the Products without following the instructions given by the Seller.

(j) repair of damage or injury resulting from the use of the Products in places, environments, or purposes, where there are no factors, conditions or characteristics suitable for obtaining optimal performance of the Product.

(k) normal wear and tear of the Products and/or their components.

(l) any loss and/or damage to property or persons related to the installation, start-up, use and/or maintenance of the Products carried out by the Buyer or by third parties

(m) damage to the systems or equipment in which the Products are integrated, during periods of faulty operation

(n) damage and defects attributable to unforeseen events or force majeure (as described in clause 9)

(o) those losses and/or damages caused by inadequate operating conditions, outside the intervals or parameters indicated by the Seller,

(p) damage and defects attributable to negligence, improper use or faulty handling by the Buyer or the end customer.

For the entire range of filtration products, in addition to each and every one of the exclusions mentioned above, the guarantee will not cover:

(a) those defects and/or malfunctions in the Products caused by amphibians, insects, ants, rodents and/or animals and/or plants of any species

(b) those defects and/or malfunctions in the Products caused by obstructions not attributable to a manufacturing defect

(c) those defects and/or malfunctions in Products caused by settling, precipitation, agglutination of bacteria or algae, as well as silt or clay in suspension, and chemical precipitations

(d) any defects and/or malfunctions in the Products caused by failure to install an adequate pre-treatment system or by other hydraulic or electrical events.

6.- The guarantee will not cover the access costs necessary to carry out the Seller's warranty rectification works (including the removal or replacement of parts and materials, structures or other parts of the Buyer's facilities), assembly/disassembly, decontamination, and installation/reinstallation.

7.- This warranty shall not extend to those products and materials, and components or accessories that have not been manufactured by the Seller or that have not been purchased directly from it. This is not a warranty for consumers or end users and is only extended to those customers who purchase products directly from the Seller.

8.- In no case shall the Seller be liable for any type of claim, demand, complaint and/or administrative sanction that it may receive as a result of: a) the marketing of the Products by the Buyer or third parties b) for possible infringements of the industrial and intellectual property rights of third parties, c) for infringement of the rights of consumers and users. In the event of any such claims, the Buyer shall hold the Seller harmless, and shall pay and/or allow the debiting of its account of any amounts claimed from the Seller as compensation, fines in disciplinary proceedings, and other expenses that may be incurred, including those of lawyers, solicitors and experts necessary for its legal defense.

9.- This “WARRANTY” clause establishes the exclusive rights and actions in relation to all claims based on faults or defects in the Products, regardless of when the fault or defect appears and whether a claim, whatever its description, is based or not on contract, warranty, indemnity, tort (including negligence), or any other type of liability. The warranties contemplated in this clause supersede all other warranties and conditions, whether written, verbal, implied or statutory. The Seller shall not accept any warranty terms other than those expressed herein

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